

4	Camargo vs. Advanced Auto Refinishing Inc. 2026-01538636	Demurrer to Complaint <i>First Amended Complaint filed 5/6/2026</i> Off Calendar
5	Chung vs. Le 2025-01483307	Motion for Leave to Amend Code of Civil Procedure section 473(a)(1) states, “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” “There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (Sullivan v. City of Sacramento (1987) 190 Cal.App.3d 1070, 1081.) Here, Defendants seek leave to amend their answer to allege new defenses related to their assertion that the parties reached an enforceable settlement, but Plaintiff sought to impose new material terms and refused to proceed with the settlement. The motion is unopposed. There is a strong policy favoring amendment. Tentative Ruling: The Motion for Leave to Amend Answer by Defendants Trinh Le and Dao Le is GRANTED. Defendants shall file and serve their amended answer within ten days.

6	Gary, M.D., vs. Intefusion, LLC 2025-01507916	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference <i>Tentative pending</i>
7	Gomez vs. BGN Acquisitions La Habra Hills 2026-01539087	1. Motion to Strike - Anti SLAPP 2. Motion to Strike - Anti SLAPP Motion 1: Anti-SLAPP by Kimball, Tirey & St. John, LLP (ROA 16) Defendant Kimball, Tirey & St. John, LLP's ("KTS") Special Motion to Strike the Complaint under the Anti-SLAPP Statute Each parties' respective request for judicial notice is GRANTED. (Evid. Code, §452, subd. (d).) <u>Legal Standard</u> A special motion to strike is authorized against SLAPP suits (Strategic Litigation Against Public Participation), i.e., lawsuits brought "primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances." (Code Civ. Proc., § 425.16, subd. (a).) An anti-SLAPP motion may be used to strike allegations of protected activity, even if the motion does not defeat the entire cause of action. (Baral v. Schnitt (2016) 1 Cal.5th 375, 385-390; disapproving Mann v. Quality Old Time Service, Inc. (2004) 120 Cal.App.4th 90 and its progeny). The anti-SLAPP statute is to be construed broadly. (Code Civ. Proc., § 425.16, subd. (a).) To prevail on the motion, the plaintiff's claim must (1) arise out of the defendant's protected speech or petitioning; and (2) lack even minimal merit. (Navellier v. Sletten (2002) 29 Cal.4th 82, 88-89.) Thus, in ruling on an anti-SLAPP motion, courts engages in a two-step process: "First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] [Second,] [i]f the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (Baral, supra, 1 Cal.5th at p. 384.) <u>First Prong – Protected Activity</u> KTS moves to strike each cause of action on the grounds that the activity alleged against it arises from statements and filings made in